



U.S. Department
of Transportation
**Research and
Special Programs
Administration**

400 Seventh St., S.W.
Washington, D.C. 20590

JUN 27 2001

DOT-E 12711
(FIRST REVISION)

EXPIRATION DATE: August 31, 2001

1. GRANTEE: Crowley Marine Services, Inc.
Seattle, WA
2. PURPOSE AND LIMITATION:
 - a. This emergency exemption authorizes the transportation in commerce of Propane in DOT specification 51 portable tanks exceeding the weight limitations authorized for shipment by cargo aircraft. This exemption provides no relief from any Hazardous Materials Regulation (HMR) other than as specifically stated herein.
 - b. The safety analyses performed in development of this exemption only considered the hazards and risks associated with transportation in commerce.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 172.101(9B) in that the quantity limitation for Propane by cargo aircraft is exceeded; and § 172.302(c) in that marking the portable tanks with the exemption number is waived.
5. BASIS: This emergency exemption is based on the application of Crowley Marine Services, Inc., dated May 25, 2001, and supplementary request dated May 29, 2001 and June 26, 2001, submitted in accordance with § 107.117 and a determination that it is necessary in order to protect life and the environment.

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

JUN 27 2001

Proper Shipping Name/ Hazardous Materials Description	Hazard Class/ Division	Identi- fication Number	Packing Group
Propane	2.1	UN1075	n/a

7. SAFETY CONTROL MEASURES:

PACKAGING - Packagings prescribed are DOT specification 51 portable tanks with a capacity of 1,000 gallons.

8. SPECIAL PROVISIONS:

a. This exemption authorizes five shipments of one thousand gallons of propane per shipment. The return shipment of depleted tanks by air is authorized.

b. The shipment is to originate at Nome, Alaska destined for Kotzebue, Alaska to be transported by Lyndon Air Cargo or Northern Air Cargo.

c. The portable tank must be properly secured in the aircraft to prevent movement during transportation.

d. The marking requirement in § 172.302(c) is waived.

9. MODES OF TRANSPORTATION AUTHORIZED: Cargo aircraft only.10. MODAL REQUIREMENTS:

a. A current copy of this exemption must be carried aboard each cargo aircraft used to transport packages covered by this exemption. The shipper must furnish a copy of this exemption to the air carrier before or at the time the shipment is tendered.

b. Advance Notice of FAA Civil Aviation Security Regional Dangerous Goods/Cargo Security Coordinator (DG/CS). Notify the regional DG/CS Coordinator in the region where the flight will originate. This notification must be given at least 48 hours in advance of plans to operate under the exemption, unless prior arrangements have been made with the cognizant regional DG/CS Coordinator. The notification will include the point of departure and destination and a loading and departure schedule.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training requirements required by §§ 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (Sections 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incident involving the package and shipments made under the terms of this exemption.

Issued in Washington, D.C.:



Robert A. McGuire
Associate Administrator for
Hazardous Materials Safety

JUN 27 2001

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

JUN 27 2001

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

Copies of exemptions may be obtained from the AAHMS, U.S. Department of Transportation, 400 7th Street, SW, Washington, DC 20590-0001, Attention: Records Center, 202-366-5046.

PO: KFW(01)